

TENTATIVE RULING FOR JULY 14, 2026

Department R12 - Judge Kory Mathewson

Cory A. Horton v. Connected Enterprise Group, Inc. – CIVRS2400483

Motion: Motion for Summary Adjudication

Movant: Plaintiff Cory A. Horton

Respondent: Defendant Connected Enterprise Group, Inc., dba Galloway Boys Trucking

Ruling: Motion for Summary Adjudication is DENIED. The motion does not completely dispose of a cause of action, claim for damages, affirmative defense, or recognizable issue of duty.

Defendant to provide Order and give notice.

Horton seeks summary adjudication of a “single issue,” namely, whether he was Connected’s employee under Labor Code sections 2775-2776. The motion is opposed by Connected on the grounds that disputed material facts remain over whether Horton was an employee.

Objections

Horton’s “evidentiary” objections to the Holguin and Chandler declarations are denied.

ANALYSIS

When the moving party is a plaintiff, the initial burden is met by a showing that there is no defense to the action or rather by proving each element of the cause or causes of action. (See Code Civ. Proc., § 437c, subd. (p)(1).) Likewise, defendants can meet their initial burden by showing that a cause or causes of action have no merit because one or more elements of the claims “cannot be established.” (See Code Civ. Proc., § 437c subd. (p)(2).) However, if the movant does not satisfy the initial burden, the motion must be denied and it is unnecessary for the court to consider the opposition. (*Swanson v. Morongo Unif. Sch. Dist.* (2014) 232 Cal.App.4th 954, 963.)

A motion for summary adjudication is proper only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., 437c, subd. (f).) An adjudication in this case as to whether Horton was an employee or independent contractor of Connected, or was in a business-to-business relationship, would not completely dispose of the causes of action because the issue of damages would still remain unresolved. A plaintiff cannot obtain summary adjudication as to liability and leave the issue of damages for trial. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; see also *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410, 422 [Court also cannot adjudicate a single item of damages that does not dispose of an entire cause of action].)

Here, Horton concedes he does not even seek an adjudication as to any particular damages claim. (Opening Brief at 2:17-22.) As a result, the motion would not completely dispose of a cause of action. Nor would the motion completely dispose of a “claim for damages” based on Horton’s concession. In any event, the term “damages claim” under Code of Civil procedure section 437c means the damages specified in Civil Code § 3294, i.e. punitive damages. (*DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410, 422.)

While the complaint includes a first cause of action entitled “misclassification of independent contractor,” that is not a recognizable cause of action, but a theory of liability. Indeed, neither of the Labor Code sections underlying the claim (sections 2775 and 2776) indicate they create a private right

of action. Instead, the statutes provide guidance for “determination[s] of status” to establish liability. But as noted above, liability by itself generally does not completely dispose of a cause of action.

As for whether the motion completely disposes of an issue of duty or an affirmative defense, under Labor Code section 2775, “a person providing labor or services for remuneration shall be considered [is presumed to be] an employee rather than an independent contractor unless the hiring entity” satisfies the ABC test announced in *Dynamex Operations W. Inc. v. Superior Court (Lee)* (2018) 4 Cal.5th 903, and which was codified by section 2775. Thus, whether Horton was an independent contractor is an affirmative defense and the Judicial Council has created a jury instruction for that purpose in the Labor Code 2755 context. (See CACI 2705 [Independent Contractor – Affirmative Defense – Worker Was Not Hiring Entity’s Employee].) While perhaps the motion could have been noticed as one directed at such an affirmative defense, none exists in the amended answer and, as noted above, the pleadings generally frame the issues for purposes of summary judgment and adjudication motions.

Further, while Horton argues the motion as one directed at an issue of duty, that is whether Connected broadly owed duties of an employer under the Labor Code (Opening Brief at 2:16-19), the “duties” contemplated by section 437c(f), appears to be contractual and tort duties. (*Linden Partners v. Wilshire Linden Assocs.* (1998) 62 Cal.App.4th 508, 518.) The statutes at issue in this case provide tests to determine the parties’ “statuses” and do so for purposes of statutory claims, not contractual or tort obligations. Since the motion is directed at resolving Connected’s “status,” only superficially references the broad employer duties imposed by the Labor Code, and since the determination would not completely dispose of a cause of action or any *particular* duty (statutory or otherwise), the Court reasons that the motion fails to comply with the limitations imposed by subdivision (f)(1) of Code of Civil Procedure section 437c.

Some courts have also taken the position that an adjudication that defendant did or did not owe a duty to plaintiff is proper *only* if it *completely disposes* of a claim or defense (*Regan Roofing Co., Inc. v. Sup.Ct. (Pacific Scene)* (1994) 24 Cal.App.4th 425, 436 (disapproved on other grounds by *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 565)), but a more recent case has held that a court may summarily adjudicate an issue of duty “*without regard for the dispositive effect* of such ruling on other issues in the litigation.” (*Linden Partners v. Wilshire Linden Assocs.* (1998) 62 Cal.App.4th 508, 522.)

Finally, while Code of Civil Procedure section 437c(t), allows for a stipulated motion “for summary adjudication of a legal issue or a claim for damages other than punitive damages *that does not completely dispose of* a cause of action, affirmative defense, or issue of duty,” no such stipulation and order was submitted in this case. As a result, the motion is procedurally improper and is denied.

Dated: July 14, 2026

Judge Kory Mathewson